

# Case studies of religious minorities in Muslim-majority states

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**Openrouter**

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LANGUAGE

**En**

AUDIENCE

**GENERAL**

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#### SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

#### USER PROMPT

Write a concise, self-contained article entry for the title: "Case studies of religious minorities in Muslim-majority states".

Overall topic for alignment: Freedom of belief and conscience in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

**\*\*Respond in English\*\***

## SUMMARY

# Religious Minorities in Muslim-Majority States: Summary

## Doctrinal Foundations

The Quran provides competing textual anchors on religious pluralism—notably 2:256 ("no compulsion in religion") and 109:6—alongside verses on apostasy and blasphemy that have generated divergent interpretations. Classical jurisprudence developed the *dhimmī* category for protected non-Muslims (*ahl al-kitāb*), granting security in exchange for *jizya* and civic restrictions, articulated through the contested "Pact of 'Umar."

The four Sunni schools differ in approach: Ḥanafī (most accommodating), Mālikī (emphasizing public interest), Shāfi'ī (meticulous codification), and Ḥanbalī (textually conservative). Shī'ī and Mu'tazila/Ash'ariyya traditions added further variation.

## Case Studies

- **Egypt:** Copts (~10%) have constitutional recognition but face church-construction restrictions and uneven blasphemy enforcement; personal status follows Ottoman *millet* legacy.
- **Iran:** Constitution recognizes Jews, Christians, and Zoroastrians with reserved seats, but Bahá'ís face systemic exclusion—showing how *ahl al-kitāb* classifications shape citizenship.
- **Pakistan:** Blasphemy laws and the 1974/1984 constitutional designation of Ahmadis as non-Muslims codify minority constraints affecting Hindus, Christians, and Ahmadis.
- **Indonesia:** *Pancasila* recognizes six religions in a hybrid system (*adat*, civil law, sharia in Aceh), though local blasphemy and Ahmadi/Shī'a restrictions persist.
- **Malaysia:** Dual legal system; non-Muslims practice freely but conversion from Islam is restricted.
- **Saudi Arabia/Gulf:** Historically restrictive Ḥanbalī context, with recent liberalization and the 2019 Abu Dhabi Document on Human Fraternity.
- **Turkey:** Secular framework under the 1923 Lausanne Treaty recognizes select communities, but issues like the closed Halki Seminary reveal lingering asymmetries.

## Interpretive Frameworks

Older Orientalist views (Goldziher) framing sharia as inherently incompatible with religious freedom have been nuanced—both by Said's critique and contemporary scholarship showing classical *fiqh* contained pluralist resources, with many modern restrictions stemming from post-colonial state-building rather than classical tradition.

Tensions persist between the 1948 UDHR (Article 18) and the 1990 Cairo Declaration, which subordinates rights to sharia. Reformists (An-Na'im, Abou El Fadl, Kamali) advocate reinterpretation via *maqāṣid al-sharī'a*, prioritizing preservation of religion, life, and intellect.

## Conclusion

Minority outcomes vary based on dominant juristic school, colonial/post-colonial codification, and reformist versus traditionalist currents. Freedom of conscience has genuine grounding in Islamic tradition, but full realization remains an ongoing endeavor requiring recontextualization of historical frameworks within modern citizenship.

### FULL CONTENT

## Case Studies of Religious Minorities in Muslim-Majority States

The status of religious minorities in Muslim-majority states offers a revealing lens through which to examine the practical application of *sharī'a* (شريعة) and its relationship to freedom of belief and conscience. While classical Islamic jurisprudence developed sophisticated frameworks for the coexistence of communities, contemporary realities vary widely across nations, shaped by colonial legacies, constitutional choices, sectarian dynamics, and global human rights norms. This article surveys representative cases and the doctrinal and historical contexts that inform them.

## Quranic Foundations and Classical Frameworks

The Quran provides several foundational verses cited in discussions of religious pluralism. *Sūrat al-Baqara* 2:256, "*lā ikrāha fī al-dīn*" ("there is no compulsion in religion"), is frequently invoked as a textual anchor for freedom of conscience. *Sūrat al-Kāfirūn* 109:6, "*lakum dīnukum wa-liya dīn*" ("for you is your religion, and for me is mine"), reinforces a posture of religious distinction without coercion. Yet other

verses addressing apostasy, blasphemy, and intercommunal conflict have generated competing interpretations across centuries.

Classical jurisprudence developed the categories of *dhimmī* (ذمي)—protected non-Muslim subjects, typically *ahl al-kitāb* ("People of the Book": Jews, Christians, and, in many interpretations, Zoroastrians and Sabians)—who were granted security of life, property, and worship in exchange for the *jizya* (جزيه) tax and certain civic restrictions. The so-called "Pact of 'Umar" (*'ahd 'Umar*) is the most cited, though historically contested, articulation of this arrangement.

## Juristic Schools and Theological Diversity

Approaches to minorities differ across the four Sunni *madhāhib*:

- **Ḥanafī**: Often regarded as the most expansive in accommodating non-Muslims in civic life, allowing minority testimony in many matters and extending *dhimmī* status broadly.
- **Mālikī**: Emphasizes communal stability and the *maṣlaḥa* (public interest), with detailed rules on interfaith interaction prevalent in North and West Africa.
- **Shāfi'ī**: Codifies *dhimmī* obligations meticulously; influential across East Africa, Egypt, and Southeast Asia.
- **Ḥanbalī**: Historically the most textually conservative, dominant in the Arabian Peninsula, though contemporary Ḥanbalī-influenced jurisdictions vary in practice.

Shī'ī jurisprudence (notably Ja'farī) developed parallel categories, while theological schools such as the Mu'tazila and Ash'ariyya debated the rational foundations of moral obligation, with implications for how conscience and reason relate to revealed law.

## Selected Case Studies

### Egypt: Coptic Christians

Egypt's Coptic Orthodox community, one of the oldest Christian populations globally, comprises roughly 10% of the population. Copts enjoy constitutional recognition and participate in public life, yet face periodic sectarian tensions, restrictions on church construction (historically governed by the Hamayouni Decree and reformed by the 2016 Church Construction Law), and unequal application of blasphemy statutes. Personal status matters are adjudicated by communal religious authorities—a *millet*-style legacy of Ottoman administration.

### Iran: Recognized and Unrecognized Minorities

The Iranian constitution recognizes Jews, Armenian and Assyrian Christians, and Zoroastrians, allocating them reserved parliamentary seats. However, Bahá'ís—Iran's largest non-Muslim minority—are not recognized and face systemic exclusion from higher education, employment, and property

rights. This case illustrates how doctrinal classifications of *ahl al-kitāb* directly shape modern citizenship.

## Pakistan: Hindus, Christians, and Ahmadis

Pakistan's blasphemy laws (Sections 295-B and 295-C of the Penal Code) and the constitutional declaration of Ahmadis as non-Muslims (1974, 1984) demonstrate how state codification of religious identity can constrain minorities. Hindus in Sindh and Christians in Punjab navigate both legal restrictions and social pressures, while Ahmadis face specific prohibitions on self-identifying as Muslim.

## Indonesia: Pancasila Pluralism

Indonesia, the world's most populous Muslim-majority country, founded its national identity on *Pancasila*, recognizing six official religions. Predominantly Shāfiʿī, its hybrid model integrates customary law (*adat*), national civil law, and sharia in Aceh. Religious minorities generally enjoy formal protection, though local blasphemy enforcement and restrictions on certain groups (e.g., Ahmadis, Shīʿa) have drawn international concern.

## Malaysia: Federal Pluralism with Constraints

Malaysia's dual legal system applies sharia to Muslims and civil law to others. Non-Muslim minorities (Chinese Buddhists, Hindus, Christians) practice freely, but conversion *from* Islam remains legally restricted, and disputes over religious identity in family law have produced notable constitutional cases.

## Saudi Arabia and the Gulf

Predominantly Ḥanbali in jurisprudential orientation, Saudi Arabia historically permitted no public non-Muslim worship, though recent reforms have eased some restrictions. The UAE and Bahrain have established interfaith initiatives, with the 2019 Document on Human Fraternity signed in Abu Dhabi marking a notable theological gesture toward pluralism.

## Turkey: Secular Constitution, Lingering Asymmetries

Turkey's secular framework, inherited from the Kemalist reforms, recognizes Greek Orthodox, Armenian Apostolic, and Jewish communities under the 1923 Treaty of Lausanne. Restrictions on clergy training (e.g., the closure of the Halki Seminary since 1971) and property disputes illustrate tensions between secular statehood and inherited Ottoman *millet* structures.

## Orientalist Perspectives and Their Critiques

Nineteenth- and early twentieth-century Orientalist scholarship, exemplified by figures such as Ignác Goldziher and later critiqued by Edward Said, often framed sharia as inherently incompatible with

religious freedom. Contemporary scholarship—both Muslim and non-Muslim—has nuanced this view, demonstrating that classical *fiqh* contained pluralist resources alongside hierarchical ones, and that modern restrictions often derive from post-colonial state-building rather than uninterrupted classical practice.

## Human Rights Instruments and Contemporary Dialogue

The 1948 Universal Declaration of Human Rights (Article 18) affirms freedom of thought, conscience, and religion, including the right to change one's belief. The 1990 Cairo Declaration on Human Rights in Islam offers an Islamic framework but subordinates rights to sharia, generating ongoing debate. Reformist Muslim thinkers—including Abdullahi An-Na'im, Khaled Abou El Fadl, and Mohammad Hashim Kamali—argue for reinterpretations grounded in *maqāṣid al-sharī'a* (the higher objectives of sharia), particularly the preservation of *dīn* (religion), *nafs* (life), and *ʿaql* (intellect), to expand protections for minorities.

## A Humanistic Reading

A humanistic approach to sharia emphasizes its ethical objectives (*maqāṣid*) over rigid formalism, treating *lā ikrāha fī al-dīn* as a normative principle and acknowledging that historical *dhimmī* arrangements—progressive for their era—require recontextualization within modern citizenship frameworks. Such a reading does not dilute Islamic legal tradition; rather, it draws on its internal resources (*ijtihād*, *maṣlaḥa*, *ʿurf*) to reconcile communal authenticity with universal conscience.

## Conclusion

Case studies across Egypt, Iran, Pakistan, Indonesia, Malaysia, the Gulf, and Turkey reveal that minority experience in Muslim-majority states cannot be reduced to a single sharia narrative. Outcomes depend on which juristic school predominates, how colonial and post-colonial states codified religion, and whether reformist or traditionalist currents shape public policy. Freedom of belief and conscience finds genuine textual and historical grounding within Islamic tradition; its full realization, however, remains an ongoing legal, theological, and civic endeavor.

**SEGMENTED DATA (1)**

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